

24NWCV01399 24NWCV01399

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-21

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CP%2C07%2F21%2F2026

Source SHA-256: b4a15454993a4bb4cd7a84fdc47c1ecaf4d34d11b6e4a485c3b7a1f4fff7293c

Case Number: 24NWCV01399 Hearing Date: July 21, 2026 Dept: P

MORGAN LITTLE v. LAKEWOOD
REGIONAL MEDICAL CENTER, INC.

CASE NO.: 24NWCV01399

HEARING: 07/21/2026 @ 10:30 AM

#13

TENTATIVE ORDER

Defendant Lakewood Regional Medical Center's motion for an undertaking, joined by Defendant Mark Reynolds M.D., is DENIED without prejudice.

Moving party to give notice.

Defendant Lakewood Regional Medical Center (Lakewood) moves for an order requiring Plaintiff Morgan Little (Plaintiff) to file an undertaking.

Background

On May 2, 2024, Plaintiff filed this action against Lakewood, Mark Reynolds, M.D. (Dr. Reynolds) (collectively, Defendants), and Does 1 through 20. The complaint alleges that on August 10, 2022, Plaintiff, with her service animal, went to Lakewood's emergency room due to severe abdominal pains. (Complaint, ¶ 12.) Plaintiff alleges that from her arrival to

discharge, she was discriminated against and subjected to unsafe and unsanitary conditions including being made to walk to the emergency room, being denied entrance into the waiting room without first showing certification for her service animal, being denied proper care, and being improperly discharged. (Complaint, ¶¶ 13-29.) The complaint asserts four causes of action: (1) violations of Unruh Civil Rights Act, (2) ordinary negligence, (3) professional negligence (medical malpractice), and (4) invasion of privacy.

On April 23, 2026, this motion first came on for hearing. The Court continued the hearing on this motion based on new evidence presented in reply. The Court permitted Plaintiff to file a sur-reply by May 7, 2026.

Legal Standard

Code of Civil Procedure section 1030, subdivision (a) provides: "When the plaintiff in an action...resides out of the state...the defendant may at any time apply to the court by noticed motion for an order requiring the plaintiff to file an undertaking to secure an award of costs and attorney's fees which may be awarded in the action." "The motion shall be made on the grounds that the plaintiff resides out of the state...and that there is a reasonable possibility that the moving defendant will obtain judgment in the action or special proceeding." (Code Civ. Proc., § 1030, subd. (b).) "The motion shall be accompanied by an affidavit in support of the grounds for the motion...The affidavit shall set forth the nature and amount of the costs and attorney's fees the defendant has incurred and expects to incur by the conclusion of the action." (Code Civ. Proc., § 1030, subd. (b).) The moving party is not required to show the impossibility of an out-of-state plaintiff will prevail at trial, but rather the reasonable possibility of moving party's success. (Baltayan v. Estate of Getemyan (2001) 90 Cal.App.4th 1427, 1432.)

" 'The purpose of the statute is to enable a California resident sued by an out-of-state resident ' "to secure costs in light of the difficulty of enforcing a judgment for costs against a person who is not within the court's jurisdiction." ' [Citation.] The statute therefore acts to prevent out-of-state residents from filing frivolous lawsuits against California residents.'" (Alshafie v. Lallande (2009) 171 Cal.App.4th 421, 428.)

Joinder

Dr. Reynolds moves to join Lakewood's motion for undertaking. Dr. Reynold's request for joinder is GRANTED.

Request for Judicial Notice

Lakewood submits a Request for Judicial Notice with its reply papers. In consideration of the new evidence presented in reply, the Court continued this motion and permitted Plaintiff to file a sur-reply. (Order, 4/23/26.)

Lakewood requests the Court takes judicial notice of certain declarations that Lakewood had filed and served as part of its Motion for Summary Judgment on October 24, 2025.

In the sur-reply, Plaintiff opposes the request for judicial notice on the grounds that Lakewood cannot use documents filed with a different motion to support this motion and because judicial notice cannot be taken of the truth of the matters in prior declarations.

Here, Lakewood's request for judicial notice is GRANTED pursuant to Evidence Code section 452, subdivision (d) insofar as the prior declarations are Court records. However, the Court does not take judicial notice of the truth of the declarants' statements. "[W]hile courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files." (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882 ["Courts may not take judicial notice of allegations in affidavits, declarations and probation reports in court records because such matters are reasonably subject to dispute and therefore require formal proof."].)

As the Court can take judicial notice only as to the existence of these records and not for the truthfulness of the assertions made in the declaration, the Court agrees with Plaintiff that Lakewood's evidence remains inadmissible.

Evidentiary Objections

Plaintiff makes twenty evidentiary objections to evidence

presented by Lakewood. The Court rules in part, as necessary to the disposition of this motion.

Plaintiff's first through seventh evidentiary objections consist of objections to Plaintiff's medical charts and records and expert witness testimony. The Court sustains these objections based on lack of authentication. As discussed above, the Court cannot use the judicial noticed declarations for the truth of the respective declarants' assertions. As Lakewood relied on these declarations to authenticate Plaintiff's medical charts and records, the Court cannot find the evidence authenticated for purposes of this motion. The Court also cannot rely on the assertions made in the expert witness declarations.

Discussion

Lakewood, joined by Dr. Reynolds (collectively, Defendants) moves for an order requiring Plaintiff to file an undertaking in the amount of \$50,000 pursuant to Code of Civil Procedure section 1030 on the grounds that Plaintiff resides out-of-state and there is a reasonable possibility that Defendants will prevail.

As the majority of Defendants' evidence presented in support of their arguments is inadmissible for this motion, the Court does not find that Defendants can establish a reasonable possibility of prevailing.

Accordingly, Defendants' motion for an undertaking is DENIED without prejudice.

Moving party to give notice.